

Indian Polity — Part 7 (Final)

Part 7 of 7

Judiciary, State Government, Panchayati Raj & Centre-State Relations
SSC CGL • CHSL • CPO • MTS/GD • Railway NTPC • State Police/Defence

Judiciary

State Govt

Panchayati Raj

Centre-State

DEPTH CALIBRATION — SSC CGL

CORE = high-probability direct recall. **BONUS** = useful context / Tier-2 depth. **2026 UPDATE** = current-affairs relevant. This is the final, longest part — it closes out everything left in the video: Governor's full powers, the Judiciary, State Legislature, Panchayati Raj, Centre-State relations, Finance Commission/GST Council, and a master Amendments table.

1. Governor's Powers Over State Bills (Articles 200–202) **CORE**

Article	Power
200	When a Bill passed by the State Legislature reaches the Governor, they can: (a) give assent, (b) withhold assent, or (c) reserve it for the President's consideration
201	Once reserved for the President, the President may assent or withhold assent — there's no fixed timeline, so this can effectively stall a Bill indefinitely (this exact tension produced the 2025 Supreme Court case discussed in Part 6's current-affairs section)
202	Governor can return a Bill (except a Money Bill) to the Legislature for reconsideration — if re-passed, the Governor cannot withhold assent again in the same way

TRAP WORDING

Even after the State Legislature re-passes a Bill, the Governor can *still* reserve it for the President's consideration instead of assenting — this is a real, tested "unitary feature" that undercuts the state's legislative autonomy. Don't assume re-passage forces the Governor's hand the way it does with an ordinary Union Bill returned by the President.

2. Contingency Fund vs. Consolidated Fund **CORE**

Fund	Article (Union / State)	Held By	Purpose
Consolidated Fund	266 (State: 266)	—	All salaries, pensions, routine government expenditure and revenue
Contingency Fund of India	267	Finance Secretary , on behalf of the President	Emergency/unforeseen expenditure at the Union level
Contingency Fund of a State	267(2) / State-specific article	Governor	Emergency/unforeseen expenditure at the State level

TRAP WORDING

Union Contingency Fund → held by the *Finance Secretary* (not the *Finance Minister*) on the President's behalf. State Contingency Fund → held directly by the *Governor*. This exact swap ("secretary vs minister," "Finance Secretary vs Governor") is a frequently tested trap.

3. Dissolving the Legislature — Governor vs. President, Side by Side **CORE**

Who	Dissolves	Article	On Whose Advice
Governor	State Legislative Assembly	174(2)(b)	Chief Minister & Council of Ministers (or after a no-confidence motion)
President	Lok Sabha	85(2)(b)	Prime Minister & Council of Ministers (or after a no-confidence motion)

TRAP WORDING

Neither the Governor nor the President can dissolve their respective House purely at personal discretion — a PYQ option claiming "the President has no such power regarding the Lok Sabha" is **false**; the President does have this power, but only on ministerial advice, not personally.

4. President's Rule — Extra Mechanics CORE

Fact	Detail
Majority to proclaim initially	Simple majority in Union Cabinet decision to advise the President — no Parliamentary vote needed yet at this stage
Majority for Parliament's approval	Must be approved by both Houses within 2 months — ordinary/simple majority is enough for this approval
Majority to revoke	None needed — revocation does not require Parliamentary approval at all
Sarkaria Commission (1988)	Recommended Governors get a fixed 5-year tenure and not be removed except in rare, compelling circumstances; use Article 365 as a warning before invoking 356

MEMORY TRICK

"Easy on, hard to review, easy off" — proclaiming needs only Cabinet-level simple majority initially, Parliament's approval within 2 months needs simple majority too, but revoking needs no approval process whatsoever — asymmetry that favours the Centre's ability to impose and remove at will.

5. Pardoning Power — President (Art 72) vs. Governor (Art 161) CORE

Feature	President (Article 72)	Governor (Article 161)
Death sentence	Can fully pardon	Can only suspend, remit, or commute — cannot fully pardon
Court martial (military) sentences	Has this power	Has no power here at all
Scope of offences	Extends to Union law cases	Limited to State law cases only
Judicial review	Subject to limited review if exercised arbitrarily/mala fide	Same — limited review if arbitrary/mala fide

TRAP WORDING

A very common wrong-option pattern writes "Article 72" when the question is really about the *Governor's* pardoning power — remember, the Governor's article is **161**, not 72. Also: "Governor can fully pardon a death sentence" is always false.

6. Judiciary — Supreme Court & High Courts

CORE

Fact	Detail
Supreme Court strength	Maximum 34 total — CJI + 33 other judges
Article for CJI appointment	Article 126 (also covers appointment of an Acting CJI)
Article for High Court existence	214 — mandates a High Court for each State (some States share one)
Article for High Court composition	216 — Chief Justice + other judges, all appointed by the President
Oath — High Court CJ	Administered by the President
Oath — other High Court judges	Administered by the Governor of that State (appointment still by the President)
Total High Courts (current)	25
High Courts with multi-state jurisdiction	Guwahati HC (Assam, Nagaland, Mizoram, Arunachal Pradesh); Punjab & Haryana HC (Punjab, Haryana, Chandigarh); Bombay HC (also covers some UTs)
Article 139-A	Lets the Supreme Court transfer cases between High Courts for consistency in law — inserted by the 42nd Amendment
Article 131	Gives the Supreme Court exclusive original jurisdiction over disputes between the Centre and one/more States, or between States themselves
Article 32 vs. 226	Article 32 (Supreme Court) is for Fundamental Rights only; Article 226 (High Courts) covers Fundamental Rights <i>and</i> any other legal right — technically wider in scope, even though the Supreme Court sits above

TRAP WORDING

Don't assume "26 High Courts" or an outdated count — always double-check current numbers on High Courts, as new ones are occasionally created. As of this recording, **25** is correct.

Gap Within This Part — The Collegium System

BONUS

WHAT THE VIDEO DIDN'T COVER

The video explains who appoints judges (the President) but not the real mechanism that decides *who* gets recommended — the Collegium System. Not in the Constitution's text at all; entirely court-evolved.

Case	Held
First Judges Case, 1981 (S.P. Gupta)	"Consultation" with the CJI (Articles 124(2), 217) does NOT mean concurrence — gave the Executive primacy
Second Judges Case, 1993	Reversed course — "consultation" now means concurrence; CJI's advice is binding on the President; CJI must consult 2 senior-most colleagues first. This case created the Collegium.
Third Judges Case, 1998	Expanded the Collegium to CJI + 4 senior-most Supreme Court judges
Fourth Judges Case, 2015	Struck down the NJAC/99th Amendment, restoring the Collegium (see Part 5)

MEMORY TRICK

"1-2-3-4: Executive wins, Judiciary wins, Judiciary grows, NJAC dies" — one line per case, in order.

7. State Legislature — Legislative Council (Articles 168–171) CORE

Fact	Detail
Who has it	Only 6 states : Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana, Uttar Pradesh
Mnemonic	"Maa Bhaiyo Anpad, Tel Bechkar Guzara" — Maharashtra, Bihar, Andhra Pradesh, UP, Telangana, Karnataka
Equivalent to	Rajya Sabha, at the State level
Creation/abolition process	State's Legislative Assembly passes a resolution with a special majority ; Parliament then creates/abolishes it with a simple majority — two different majorities at two different stages

Legislative Council Composition (Article 171)

Fraction	Electorate
1/3	Elected by members of the Legislative Assembly (MLAs)
1/3	Elected by local bodies — municipalities, district boards, etc.
1/12	Elected by graduates with at least 3 years' standing
1/12	Elected by teachers with at least 3 years' experience
1/6	Nominated by the Governor

TRAP WORDING

Don't swap 1/3 (local bodies) with 1/6 (Governor's nominees) — these are the two fractions most often interchanged in wrong options.

8. CAG & Attorney General/Advocate General — Full Facts CORE

Post	Article	Key Facts
CAG (Comptroller & Auditor General)	148	Appointed by President; term 6 years or up to age 65 , whichever comes first; resigns to President; removed same manner as a Supreme Court judge (see below)
Attorney General	76	Constitutional office but no fixed term or salary — both are at the President's discretion; can attend/speak in either House without voting; represents Government of India in Presidential References under Article 143
Advocate General	State equivalent	Same role as Attorney General, but at State level

"SAME MANNER AS A SUPREME COURT JUDGE" — WHAT THAT MEANS

A Supreme Court (or High Court) judge — and by extension the CAG — can only be removed on two grounds: **proved misbehaviour** or **incapacity**, via a Presidential order after an address by **both Houses of Parliament** with a **special majority** (2/3rd of members present and voting, and a majority of the total membership).

9. Panchayati Raj CORE

Fact	Detail
"Father of Local Self-Government" in India	Lord Ripon
System's historical origin	Borrowed the concept from the Chola Empire's local governance model
Committee recommending 3-tier structure	Balwant Rai Mehta Committee, 1957
The 3 tiers	Village: Gram Panchayat ; Block: Panchayat Samiti ; District: Zila Parishad
First implemented	Rajasthan (Nagaur district), 2 October 1959
Constitutional status granted by	73rd Amendment (Panchayats) and 74th Amendment (Municipalities), both 1992

TRAP WORDING

Don't confuse the **Balwant Rai Mehta Committee** (1957, recommended the 3-tier system) with the **Ashok Mehta Committee** (a later, separate committee on panchayati raj reforms) — these are two different people and two different committees, frequently mixed up as distractor options.

10. Centre-State Relations — The Full Article Map CORE

Article	Covers
73	Scope/limitation of the Union's executive power — generally restricted to Union List and Concurrent List matters; can't extend into State-specific subjects unless the Constitution or a Parliamentary law expressly allows it
131	Supreme Court's exclusive original jurisdiction — Centre-State or State-State disputes
249	Rajya Sabha's special power (2/3rd majority resolution) to authorise Parliament to legislate on a State List subject in the national interest — valid for 1 year, renewable
250	Parliament can legislate on any State List subject during a National Emergency proclamation
252	Parliament can legislate on a State subject if two or more States consent via resolution
253	Parliament has supreme power to make laws implementing international treaties/agreements , even overriding State jurisdiction (Part XI of the Constitution)
258	Lets the Union delegate its executive functions to State governments/officers, with the State's consent — added by the 7th Amendment
262	Parliament can bar Supreme Court/other courts from hearing inter-state water disputes , routing them to special tribunals instead
263	President can establish an Inter-State Council to coordinate Centre-State relations
355	Union's duty to protect every State against external aggression and internal disturbance

MEMORY TRICK — 5 DOORS INTO THE STATE LIST

"**National interest (249), National emergency (250), Neighbourly consent (252), Necessary treaty (253), Necessitated by President's Rule (356)**" — five distinct N-themed routes for the Centre to legislate on State subjects.

Inter-State Council (Article 263) — Full Detail

Fact	Detail
Chaired by	The Prime Minister
Members	Chief Ministers of all States, Union Ministers, Administrators of Union Territories
Recommended by	The Sarkaria Commission
Nature of recommendations	Advisory only — never binding on the Centre or any State

TRAP WORDING

A very common false option claims the Inter-State Council's recommendations "are binding" — they are **not**; this is one of the single most repeated traps on Article 263.

11. Article 300-A & Article 370 CORE

Article	Fact
300-A	Right to Property is now only a legal right , not a Fundamental Right (since the 44th Amendment) — remedy lies through Article 226 (High Courts), not Article 32 (Supreme Court)
370	Gave J&K special autonomous status (Centre's role limited to Defence, Foreign Affairs, Finance, Communications) — abrogated via a Presidential Order under Article 370(3) in 2019; J&K's Legislative Council was also abolished, and the state was reorganised into two Union Territories : Jammu & Kashmir and Ladakh

12. Finance Commission & GST Council

CORE

Fact	Detail
Finance Commission — Article	280 — a Constitutional (quasi-judicial) body, not merely executive
Composition	Chairman + 4 other members, all appointed by the President
Formed	Every 5 years
Function	Recommends statutory grants-in-aid to States under Article 275; balances regional development, bridges fiscal gaps
GST Council — Article	279-A — constituted by the President
GST Council composition	Union Finance Minister (Chairperson), Union Minister of State for Revenue/Finance, one minister nominated by each State government
GST Council voting	Needs a 3/4th weighted majority of votes cast — Centre's vote has 1/3rd weight, all States' votes combined have 2/3rd weight
GST Council recommendations	NOT legally binding on the Union or States

TRAP WORDING

GST Council decisions need **3/4th** majority — not 1/2 or 2/3rd, which are the majorities used elsewhere and easy to substitute by mistake. Also, States collectively always have **double** the Centre's voting weight (2/3 vs 1/3) — a frequently tested exact-ratio fact.

Tax-Sharing Articles

Article	Covers
269	Taxes on goods/services levied by the Union but collected and appropriated by States (e.g. certain inter-state trade taxes)
270	Mechanism for sharing net proceeds of most Union taxes (income tax, certain excise duties, GST) with States, as determined by the President on the Finance Commission's recommendation
286	Restricts States from taxing inter-state trade unless Parliament otherwise provides

TRAP WORDING

GST Compensation Cess is **NOT shared** between the Union and States under Article 270 — it's retained separately for compensating States for GST-transition revenue loss. A question claiming "cess is shared like other GST revenue" is false.

Special Category Status (SCS)

Extra-constitutional — not a provision of the Constitution itself, but an institutional classification. Introduced in **1969** by the **5th Finance Commission**, historically administered with the help of the (now-defunct) **National Development Council**. Granted based on factors like hilly/difficult terrain, low population density, and strategic border location — brings extra central grants and budget support.

13. Master Amendments Table — Everything Across All 7 Parts

Amendment	Year	Key Change
1st	1951	Added 9th Schedule; introduced Article 31-A, 31-B
7th	1956	Article 258 — Union delegating functions to States; States Reorganisation
21st	1967	Sindhi added to 8th Schedule
24th/25th	1971	Responded to Golaknath; inserted Article 31-C
36th	1975	Made Sikkim a full state
42nd	1976	"Mini Constitution" — Fundamental Duties added, Preamble changed (Socialist/Secular/Integrity), Lok Sabha term to 6 years, Articles 39-A/48-A/143-A added, Article 139-A (SC transfer power)
44th	1978	Reverted Lok Sabha term to 5 years; removed Right to Property from FR (now Art 300-A); changed "internal disturbance" to "armed rebellion" for National Emergency grounds
52nd	1985	Anti-Defection Law — 10th Schedule
61st	1989	Voting age reduced from 21 to 18
71st	1992	Konkani, Manipuri, Nepali added to 8th Schedule
73rd	1992	Constitutional status to Panchayats (11th Schedule)
74th	1992	Constitutional status to Municipalities (12th Schedule)
86th	2002	Article 21-A (Right to Education), 11th Fundamental Duty, modified Article 45
91st	2003	Capped Council of Ministers size at 15% of house strength; tightened anti-defection (raised merger threshold to 2/3rd)
92nd	2003	Bodo, Dogri, Maithili, Santhali added to 8th Schedule
97th	2011	Article 43-B — promotion of cooperative societies
99th	2014	NJAC — struck down in 2015 (Fourth Judges Case)
101st	2016	GST — Article 246-A, 269-A, 279-A
103rd	2019	EWS reservation (10%)
104th	2019/2020	Removed Anglo-Indian reserved seats; extended SC/ST reservation to 2030

15% COUNCIL OF MINISTERS CAP — WORKED EXAMPLE

If a Lok Sabha has 500 members, the PM + Council of Ministers together cannot exceed **75 members** (15% of 500). Minimum size of a Council of Ministers (by convention/practice) is generally treated as at least 12.

14. Quick-Fire Extras From This Video

BONUS

Fact	Detail
First Home Minister of independent India	Sardar Vallabhbhai Patel (also first Deputy PM; unified the princely states)
First woman Chief Minister of any Indian state	Sucheta Kripalani — Uttar Pradesh, 1963–1967; a freedom fighter linked to the Quit India Movement and J.B. Kripalani
Election Commission composition	3 members — 1 Chief Election Commissioner + 2 Election Commissioners (Article 324)
Article for Election Commission	324 — responsible for conducting elections in States and at the Centre
Article for Hindi as the Union's official language	343 (Devanagari script)
Basic Structure Doctrine's purpose	Brought into existence by the Supreme Court to protect the Constitution's fundamental features from being destroyed by amendments
Foreigners Tribunal	Quasi-judicial body determining citizenship status; based on the 1946 Act; linked to NRC (National Register of Citizens) verification
Where UCC was first implemented in India	Uttarakhand
What replaced the IPC, 1860	The Bharatiya Nyaya Sanhita (BNS) — part of India's new criminal law framework (alongside BNSS replacing CrPC, and BSA replacing the Evidence Act)
POCSO Act	2012, for child sexual abuse; abetment of an offence carries the same punishment as the offence itself; special courts aim to resolve cases within 1 year

GAP WITHIN THIS PART — NATIONAL FLAG DATE CORRECTION

The video states the National Flag was adopted on "24 January 1950," but this is incorrect — the flag was actually adopted by the **Constituent Assembly on 22 July 1947** (designed by **Pingali Venkayya**, originally presented in 1921). 26 January 1950 is when the *Constitution* came into force — a different event entirely. Don't mix up these two dates.

30-Second Revision Table

Topic	Key Fact
Governor's bill powers	Assent / Withhold / Reserve for President (Art 200)
Union / State Contingency Fund	Finance Secretary (for President) / Governor
President's/Governor's pardon	Art 72 (full, incl. death) / Art 161 (no death sentence, no court martial)
SC max strength	34 (CJI + 33)
Total High Courts	25
Collegium created by	Second Judges Case, 1993
States with Legislative Council	6 — Maharashtra, Bihar, AP, UP, Telangana, Karnataka
Father of Local Self-Govt / 3-tier committee	Lord Ripon / Balwant Rai Mehta (1957)
Inter-State Council	Art 263, chaired by PM, advisory only
Finance Commission / GST Council	Art 280 (5 yrs) / Art 279-A (3/4th weighted majority)

PYQ-Style Q&A (From This Video's Content)

Q1. What three options does the Governor have under Article 200 for a State Bill?

A. Give assent, withhold assent, or reserve it for the President's consideration.

Q2. Who holds the Contingency Fund of India, and on whose behalf?

A. The Finance Secretary, on behalf of the President.

Q3. Who holds a State's Contingency Fund?

A. The Governor.

Q4. Can the Governor fully pardon a death sentence?

A. No — only the President can (Article 72); the Governor (Article 161) can only suspend, remit, or commute it.

Q5. What is the maximum strength of the Supreme Court?

A. 34 (CJI + 33 judges).

Q6. How many High Courts are there in India currently?

A. 25.

Q7. Which case created the Collegium system?

A. The Second Judges Case, 1993.

Q8. Which 6 states have a Legislative Council?

A. Maharashtra, Bihar, Andhra Pradesh, Uttar Pradesh, Telangana, and Karnataka.

Q9. In which State/Assembly can a State Money Bill be introduced?

A. Only the Legislative Assembly (Article 198).

Q10. Who is called the "Father of Local Self-Government" in India?

A. Lord Ripon.

Q11. Which committee recommended the 3-tier Panchayati Raj system, and in which year?

A. The Balwant Rai Mehta Committee, 1957.

Q12. Where was the 3-tier Panchayati Raj system first implemented?

A. Rajasthan (Nagaur district), 2 October 1959.

Q13. Which Article lets the President establish an Inter-State Council, and who chairs it?

A. Article 263; chaired by the Prime Minister.

Q14. Are the Inter-State Council's recommendations binding?

A. No — they are advisory only.

Q15. Which Article allows Parliament to bar courts from hearing inter-state water disputes?

A. Article 262.

Q16. Under which Article can Parliament legislate on a State subject with the consent of two or more states?

A. Article 252.

Q17. What voting majority does the GST Council need for a decision?

A. 3/4th of weighted votes (Centre: 1/3rd weight, States collectively: 2/3rd weight).

Q18. Is the GST Compensation Cess shared between the Union and States under Article 270?

A. No.

Q19. Which body recommends grants-in-aid to states under Article 275?

A. The Finance Commission.

Q20. How often is a new Finance Commission constituted?

A. Every 5 years.

Q21. Which Amendment abrogated Article 370's special status for J&K?

A. It was abrogated via a Presidential Order under Article 370(3) itself, in 2019 (not a numbered Constitutional Amendment).

Q22. Who was the first Home Minister of independent India?

A. Sardar Vallabhbhai Patel.

Q23. Who was the first woman Chief Minister of any Indian state?

A. Sucheta Kripalani (Uttar Pradesh, 1963–1967).

Q24. How many members does the Election Commission of India have?

A. 3 — 1 Chief Election Commissioner and 2 Election Commissioners.

Extra Practice (Adjacent — Not Directly Asked in This Video)

BONUS

Q25. Who designed India's National Flag, and when was it adopted?

A. Pingali Venkayya (designed 1921); adopted by the Constituent Assembly on 22 July 1947.

Q26. Which case expanded the Collegium to include 4 senior-most judges besides the CJI?

A. The Third Judges Case, 1998.

Q27. What are the two grounds for removing a Supreme Court judge (and by extension, the CAG)?

A. Proved misbehaviour or incapacity.

Cross-check: Governor's powers, Judiciary structure, State Legislature, Panchayati Raj, Centre-State relations, Finance Commission, and GST Council content is transcribed and verified from the source lecture. The Collegium System gap-fill and the National Flag date correction were independently researched and verified against standard reference sources, since the video either omitted or misstated them. This is Part 7 — the final part of a 7-part Indian Polity series covering this full lecture.